



PROVEN OPTICS, LLC UPGRADE POLICY

1. DEFINITIONS

“Upgrades” are Proven Optics, LLC’s releases of the Subscription Service for enhancements or new features (including a new Release Family) provided by Proven Optics, LLC at no additional fee during the Subscription Term.

“Updates” are Proven Optics, LLC’s releases (including patches and hotfixes) of the Subscription Service provided by Proven Optics, LLC at no additional fee during the Subscription Term that provide problem fixes, but do not generally include new functionality, and are released as needed.

“Current Release” is the release of a Proven Optics, LLC applications available for download as of today’s date. The Current Release includes all Upgrades and Updates made to the Proven Optics, LLC applications and a complete solution with all currently available features or enhancements.

“Critical Upgrade” is an Upgrade that in Proven Optics, LLC’s reasonable judgment is critical to (a) maintaining the security or performance of the Subscription Service; (b) complying with applicable laws or (c) avoiding infringement or misappropriation of a third-party intellectual property right.

“Critical Update” is an Update that in Proven Optics, LLC’s reasonable judgment is critical to (a) maintaining the security or performance of the Subscription Service; (b) complying with applicable laws or (c) avoiding infringement or misappropriation of a third-party intellectual property right.

“Supported Releases” at a particular time means the then-current Current Release and the prior two (2) Current Releases.

2. UPGRADES AND UPDATES

Proven Optics, LLC shall determine, in its sole discretion: **(a)** whether and when to develop, release and provide any Update or Upgrade for the Subscription Service; and **(b)** whether a particular release is an Update, Upgrade or new service offering that is available separately for purchase.

3. NOTICE

Proven Optics, LLC shall: (a) give End User 30 days’ notice of any Upgrade to the Subscription Service; and (b) use reasonable efforts to give End User 10 days’ notice of any Update to the Subscription Service. Notwithstanding the foregoing, Proven Optics, LLC may provide End User with shorter notice or no notice before requesting the application of a Critical Upgrade or a Critical Update.

4. SUPPORTED AND NON-SUPPORTED CURRENT RELEASES

End User acknowledges that the Current Release is the version of the Subscription Service containing the most current features, performance and security. Within a Supported Current Release, the most recent Update is the version of the Subscription Service for that Current Release that contains the most current problem fixes, performance and security. An End

User using a Supported Current Release may be required to apply a Critical Update resulting in an upgrade to the latest Current Release. An End User that has not Upgraded to a Supported Current Release may experience defects, for which End User hereby agrees that Proven Optics, LLC is not responsible, including without limitation those that affect the features, performance and security of the Subscription Service, that are fixed in the most current version of the Subscription Service. An End User who is not using a Supported Current Release may be required to apply an Upgrade to the latest Supported Current Release.

5. SERVICENOW

End User acknowledges that Proven Optics, LLC has no operational control over the ServiceNow Platform. Any Upgrades or Updates to End User's ServiceNow instance(s) are the responsibility of End User in accordance with End User's agreement with ServiceNow. This Upgrade Policy applies solely to Proven Optics, LLC's Subscription Service.